

MILITARY LEAVE

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POLICY OWNER: CHRO Policy Unit

DIVISION: Chief Human Resources Office

INTERNAL OR STATEWIDE POLICY: Statewide

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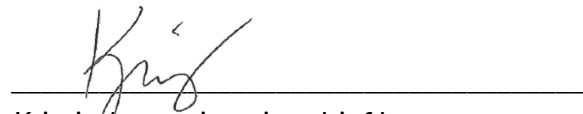
SUPERSEDES: 60.000.25 (2024)

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REFERENCE/AUTHORITY:

- ORS 399.065, 399.075, ORS 659A.086 to 659A.088, ORS 408.238 to 408.290 and USERRA 38 USC 4301-4335

APPROVED SIGNATURE:



Kristin Jones, interim chief human resources officer

Statement

This policy addresses the circumstances under which Oregon state government grants military leave with or without pay to state employees.

Applicability

All employees where not in conflict with an applicable collective bargaining agreement.

Forms

- [The Uniformed Services Employment and Reemployment Act \(USERRA\), Notice of Rights](#)

Definitions

Active service includes:

- (a) Active service of the state.
- (b) Service performed on full-time duty status under Title 10 of the United States Code.
- (c) Service performed on full-time duty status under Title 32 of the United States Code when performed under an authority other than the Governor.

Active service of the state: service performed while on full-time duty status for training, operational duty or other service of the organized militia under the authority of the Governor, whether paid from state funds or federal funds under Title 32 of the United States Code.

State active duty: full-time duty status for training, operational duty or other service, other than inactive duty, of the organized militia performed under the authority of the Governor and paid from state funds.

Also refer to State HR Policy 10.000.01, Definitions.

Policy

1. Military Leave with Pay under ORS 408.290
 - a. Eligible employees called to active duty or inactive duty for training, state active duty and duty under Title 10 or 32 of the United States Code, are entitled upon application, to military leave of absence from duties for up to 21 work days in any one federal training year.
 - b. In order to be eligible for military leave with pay under ORS 408.290, an employee must:
 - i. Have been employed with Oregon state government or its counties, municipalities or other political subdivision for six months or more immediately preceding application for military leave.
 - ii. Be a member of any National Guard, National Guard Reserve, or any reserve component of the Armed Forces of the United States or of the U.S. Public Health Service.
 - iii. Provide advance written or verbal notice of the absence except in instances involving “military necessity” or where giving notice is otherwise impossible or unreasonable.
 - c. The agency shall request confirming documentation (military orders, training/drill schedule or other official documents) for the absence.

- d. The federal training year for the purpose of this policy is the federal fiscal year (October 1 through September 30).
 - e. If an eligible employee is called to active duty for a period longer than 21 work days, the employee will be paid for all regular work days falling within the first 21 work days, only if such time is served for the purpose of discharging an obligation of annual active duty for training as described above.
 - f. If the employee has been on military active duty for training leave for 21 work days or less, the employee shall return to work at the beginning of the first regularly scheduled work period following completion of service, after allowance for safe travel home and an eight-hour rest period.
 - g. Employees shall be allowed to use paid military leave for travel to and from their place of duty and for the time spent on militarily obligated status or military duty regardless of the length of their military status or duty. Paid military leave may not exceed 21 work days.
2. Federal/State Military Leave Without Pay
- a. Military Leaves of Absence
 - i. An employee shall be entitled to military leave without pay for military duty while a member of the organized militia of Oregon, or a member of an organized militia of another state, or while they are in active service. An agency shall grant an employee a leave of absence for military duty that continues through the applicable decompression time. Military duty means training and involuntary or voluntary service performed by an inductee, enlistee or reservist, or any entrant into a temporary component of the Uniformed Services of the United States, and authorized time spent reporting for and returning from such training or service; or, if a rejection occurs, from the place to which the employee reported. Decompression time means the applicable period of time after military service during which the employee is entitled to request reemployment under USERRA (refer to Section 3. Reemployment Rights).
 - ii. Leave shall be granted according to ORS 408.240, ORS 399.065, 399.075 and ORS 659A.086. The employee shall provide verbal or written notice of military service to the agency, and the agency shall request confirming documentation (military orders or other official documents). The employee may provide the documents prior to,

during or upon completion of the military training leave. Employees are relieved of this obligation in instances involving “military necessity” or in which giving notice is otherwise impossible or unreasonable.

- iii. An employee may only be paid during active military leave or applicable decompression time if the employee:
 - 1. Elects to use accrued vacation leave, personal leave and compensatory time.
 - 2. Is an FLSA exempt employee who works any part of a work week while on temporary military leave (defined as up to three months); or
 - 3. Receives supplemental income through the Military Donated Leave Program (refer to State HR Policy 60.020.05, Military Donated Leave Program).
- iv. If the employee is a member of the Oregon organized militia and is called to active state duty under ORS 399.065 and 399.075, the employee shall be paid according to that statute. Otherwise, military leave and applicable decompression time is without pay. (For pay during Federal Active Duty Training Leave, refer to Section 1. a. through d.).
 - 1. The employee need not exhaust accrued leave before being granted leave without pay for military leave or subsequent decompression time.
 - 2. While the employee is on military leave without pay, they will not accrue vacation, sick or personal business leave, but shall receive full credit for time spent on military leave and subsequent decompression time.
 - 3. An FLSA exempt employee who works any part of a work week while on temporary military leave (defined as up to three months), shall receive a full week’s salary for that particular week. However, the agency will only pay the difference between the amount received from the employee’s military pay and the state salary due for that particular week. During such week, the employee shall receive full credit toward

accrual of sick and vacation leave hours and will be paid for any holiday occurring during the week.

- b. An employee who entered or re-entered active military leave on or after Jan. 1, 2006, shall receive up to 24 months of employer-paid health plan coverage to begin the date the employee's active health plan coverage ends.
- c. Upon exhausting the employer-paid health plan coverage, the employee may elect to continue their health plan coverage at their own expense. For more information on this process, contact the agency payroll office.
- d. With supervisory approval, employees may be allowed to voluntarily adjust their shifts to accommodate military duty.

3. Reemployment Rights

- a. State Active Duty: For employees who are members of the Oregon militia and are called into active service of the state by the Governor under ORS 399.065 and 399.075, and for employees who are members of the organized militia of another state and are called into active service of the state by that state's governor.
 - i. To be eligible for reemployment, an employee shall report back to work within seven calendar days from the last day of state active duty.
 - ii. Upon meeting the requirement for reemployment, the employee shall be restored to the employee's position or an equivalent position without loss of seniority or other benefits.
- b. Federal Active Duty: other than Federal Annual Active Duty for Training under ORS 408.290.
 - i. To be eligible for reemployment an employee shall:
 - 1. Have performed military duty as defined above in Section 2. a. i.; and
 - 2. Have given proper advance notice of the military duty, unless no notice is required; and
 - 3. Have performed military duty that did not exceed five years. Exceptions to the five-year requirement shall be made if the service is necessary to complete an initial period of obligated service, or the employee cannot return because the period of additional duty was imposed by law or resulted from the

employee's inability to obtain a release relieving the employee from active duty and the inability to obtain the release was through no fault of the employee; voluntary service overseas; voluntary service within the United States during or in response to an emergency or disaster declared by local, state or federal government; and

4. Have made application for reemployment either verbally or in writing within 90 days after the employee is relieved from military duty, unless the employee was hospitalized or convalescing due to military duty and the hospitalization/convalescence continued after discharge. An employee then has up to two years to make application for reemployment. This will be extended to accommodate a circumstance beyond an individual's control that would make applying for reemployment within the two-year period impossible or unreasonable; and
5. Have separated from the service with an honorable discharge; and
6. Return or make application for reemployment within the applicable decompression time following release from military duty as follows:
 - a. Service of one to 30 days: The employee shall return to work at the beginning of the first regularly scheduled work period that begins on the next calendar day following completion of military duty, after allowance for safe travel from the military duty location and an eight-hour rest period; or if returning at that time is impossible or unreasonable through no fault of the employee, then the employee shall return to work as soon as possible after the end of the eight-hour rest period.
 - b. Service of 31 to 180 days: The employee shall make application for reinstatement within 14 days after release from military duty; or if making application for reinstatement within 14 days is impossible or unreasonable through no fault of the employee, then

the employee shall make application on the next calendar day on which it is possible to do so; or

- c. Service of 181 or more days: The employee shall make application for reinstatement within 90 days after release from military duty.
- c. Upon reemployment, the agency shall request that the employee provide documentation showing that:
 - i. The employee's application for reemployment is timely.
 - ii. The employee has not exceeded the five-year service limitation or provides documentation of an exception under federal or state law; and
 - iii. The employee's separation from military duty was not a disqualifying discharge or under other than an honorable condition.
- d. Application for reemployment means the returning service member communicates to the agency that they are a former employee returning from military duty.
 - i. Upon meeting the requirements for reemployment, the agency shall restore the employee to their former position without loss of seniority, status or other benefits, as if the employee had remained continuously employed. If the employee is not qualified to perform the duties of such position by reason of military duty, but is qualified to perform the duties of any other position within the agency equal to or lower than the employee's current position, the employee shall be restored to such other position. The other position will provide the employee with like seniority, status and pay, or the nearest approximation thereof, consistent with the circumstances in the case.
 - ii. For an employee reemployed after military leave, their vacation accrual rate, benefit service date, and service credits shall be treated as though the employee had remained continuously employed. An employee who has not completed trial service at the time military leave begins may, under certain circumstances, be required to complete trial service upon return from military leave. Contact the Chief Human Resources Office Policy Unit or Labor Relations Unit for further information.

- iii. For the purpose of calculating an employee's eligibility for Family and Medical Leave (under the Federal Family and Medical Leave Act and the Oregon Family Leave Act), the months and hours the employee would have worked, but for their military service, should be combined with the months employed and the hours actually worked.
- iv. Immediately upon an employee's reemployment following military leave or decompression time, the agency shall contact DAS Centralized PERS Services to determine eligibility for retroactive retirement benefits.

4. Protection from Discrimination/Retaliation/Discharge

- a. An employee shall not be discriminated or retaliated against based upon a service obligation, military status or the taking of military leave.
- b. A reemployed employee shall not be discharged without cause within one year of such reemployment.